

26TRCP00120 26TRCP00120

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-13

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Case Number: 26TRCP00120 Hearing Date: August 13, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – August 13, 2026

Calendar No. 17

PROCEEDINGS

KCSG

Holdings, LLC v. City of Compton.

26TRCP00120

1.

KCSG Holdings,

LLC's Motion to Deem the Matters Specified in Requests for Admissions Admitted,
and Request for Sanctions

TENTATIVE RULING

KCSG Holdings, LLC's Motion to Deem the Matters

Specified in Requests for Admissions Admitted, and Request for Sanctions is denied,
in part, and granted, in part.

Background

Petitioner's petition was filed on April 1, 2026. The petition is to compel compliance with the California Public Records Act. On June 5, 2026, the parties submitted a joint notice of settlement. On June 29, 2026, petitioner filed a notice of withdrawal of notice of settlement.

Motions to Deem

Admitted

Code Civ. Proc., § 2033.280 states:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion."

Petitioner served upon Plaintiff Requests for Admissions, Set One, on May 1, 2026. (Decl., Dominique N. Westmoreland, ¶¶ 2-10). Petitioner contends that no responses were served to the discovery request. (Id.)

Respondent filed an opposition. Respondent acknowledges that no responses have been served but states that, on the day the responses were due, the case was settled and that the parties had been engaged in active settlement discussions beforehand. Respondent states that responses will be served prior to the hearing date of this motion and, thus, that the motion should be deemed moot. Respondent also states that it should be provided relief from any waiver of objections and that sanctions should not be imposed under these circumstances. Respondent's arguments regarding relief from waiver of objections are not appropriate at this time. Any attempt to obtain relief from the waiver of objections must be made by a noticed motion. In addition, sanctions are mandatory pursuant to CCP § 2033.280.

On August 12, 2026, Respondent filed a declaration of Kelley Bond, counsel of record for the Respondent. Attached to the declaration were responses that were served on August 11, 2026 to the Requests for Admissions. The responses are in substantial compliance with CCP § 2033.220.

Therefore, the motion to deem Requests for Admissions, Set One, admitted is denied.

Sanctions

Petitioner's request for monetary sanctions is granted.

Respondent and respondent's counsel are sanctioned the total amount of \$660.00. The amount was derived by allotting two hours to prepare and appear at \$300/hour, plus \$60 filing fee. The hourly rate was reduced from \$1200 to \$300 and the time allotted was reduced from 3.5 hours to 2 hours. Sanctions are payable within 30 days of this date.

Moving party is ordered to give notice of this ruling.